City of Burlingame

City Attorney Impartial Analysis – Measure D

Start Here

Measure D would amend Chapter 4.09.025, "Tax Rate," of Chapter 4.09 of Title 4 of the Burlingame Municipal Code, to increase Burlingame's Transient Occupancy Tax rate by three percentage points, from 12% to 15%.

Transient Occupancy Tax ("TOT" or "hotel tax") is paid on temporary lodging at hotels, motels, inns, and other short-term lodgings of less than 30 continuous days. The hotel guest is responsible for paying the tax.

The City of Burlingame received approximately $22 million in TOT revenue in Fiscal Year 2025-2026. If adopted, Measure D would generate an estimated additional $5.7 million annually, based on existing occupancy rates, room rates, and total number of hotel rooms in Burlingame.

Measure D is a general tax. If the measure is adopted, the proceeds would go into the General Fund. Those revenues may be used for unrestricted governmental purposes such as repairing and maintaining City streets, sidewalks and infrastructure; maintaining City parks and trees; enhancing public safety and emergency preparedness; and general government uses. These revenues cannot be taken away by the State.

Measure D proceeds would be subject to the same annual audit requirements as other General Fund revenues. Any auditor's report shall include an accounting of the revenues received from the Transient Occupancy Tax and shall be presented to the City Council annually and made available for public review.

The Burlingame City Council placed Measure D on the November 2026 ballot.

As a general tax, Measure D requires a simple majority for approval, which is 50% + 1 of votes cast in favor. The tax would remain in place until amended or repealed by the voters. A "Yes" vote would approve amending the Transient Occupancy Tax rate from 12% to 15%. A "No" vote would reject the measure and keep the current 12% tax rate.

End Here

[redacted]

Michael Guina
City Attorney

286 words

RECEIVED

AUG 17 2026 [redacted]

CITY CLERK'S OFFIC
CITY OF BURLINGAME